



POLICE DEPARTMENT

November 7, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202304482 (Incident Date: May 11, 2023) regarding Detective Matthew Coffaro, Tax No. 969593 (DADS No. 2024-31842)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202304482, pertaining to Detective Matthew Coffaro. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Detective Coffaro would be detrimental to the Police Department's disciplinary process.

In this case, Detective Coffaro, who was in the rank of Police Officer at the time, stopped a motorist for having excessive tints and a loud exhaust. After the motorist failed to produce a driver's license, Detective Coffaro asked the motorist to step out of the vehicle so that he can confirm the motorist's identity at the rear of the vehicle. He then asked the motorist if the motorist had any weapons or drugs on him and if he consented to a search of his person. The motorist consented to a search. Detective Coffaro frisked and searched the individual and eventually released the individual without issuing a summons. At the end of the encounter, Detective Coffaro stated that business cards were available.

After reviewing the available evidence, and considering the totality of the circumstances, the Police Commissioner finds that Detective Coffaro's question to the motorist was proper. The motorist's demeanor leading up to and during the stop was sufficient to give the detective the right to ask pointed and accusatory questions. However, the Police Commissioner agrees with the CCRB in that the frisk and search were improper because Detective Coffaro failed to inform the motorist that if he did not consent, the detective could not search him. Additionally, Detective Coffaro failed to meet his obligation to offer the motorist a business card.

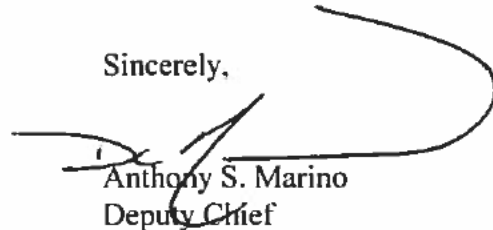
Detective Coffaro has no formal disciplinary history and no prior substantiated CCRB cases. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action against Detective

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Coffaro for the allegation of the improper questioning of an individual. Additionally, the Police Commissioner intends to issue a Schedule "A" Command Discipline with the forfeiture of two (2) vacation days for the allegations regarding the improper frisk, improper search, and failure to provide a business card.

Sincerely,

A handwritten signature in black ink, appearing to read "Anthony S. Marino". The signature is stylized with a large, sweeping loop that extends to the right and then curves back down towards the text below.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



November 8, 2024

The Honorable Thomas G. Donlon
Interim Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202304482 (Incident Date: May 11, 2023) regarding Detective Matthew Coffaro, Tax No. 969593 (DADS No. 2024-31842)

Interim Commissioner Donlon:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated November 7, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent not to impose any disciplinary action against Detective Matthew Coffaro for his improper questioning of Mark Perry, the complainant in the herein matter, and only direct the issuance of a Schedule “A” Command Discipline with the forfeiture of two (2) vacation days for his improper frisk, improper search, and failure to provide a business card to the complainant. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing the available evidence, and considering the totality of the circumstances, you found that Detective Coffaro’s question to the complainant was proper. CCRB disagrees with your determination.

Detective Coffaro’s justifications for questioning § 87(2)(b) that he observed § 87(2)(b) vehicle parked and then shortly afterward saw § 87(2)(b) driving, § 87(2)(b) looking in his rearview mirror, and § 87(2)(b) slightly turning his torso away from Detective Coffaro as he approached the driver’s side window, fall woefully short of a founded suspicion. Even crediting Detective Coffaro’s statement to CCRB that § 87(2)(b) actions amount to ‘nervous’ behavior, the court in *People v. Garcia*, 20 N.Y.3d 317¹, has affirmed that such behavior does not alone amount to a founded suspicion that § 87(2)(b) was armed. As such, Detective Coffaro did not possess any founded suspicion to question § 87(2)(b) about weapons and drugs, no less reasonable suspicion that § 87(2)(b) was armed,

¹ The court found that during a lawful vehicle stop based on a VTL infraction, while evidence demonstrated the vehicle’s occupant appeared nervous, the officers could not ask the occupants if they possessed any weapons absent founded suspicion for the inquiry.

With regards to the other charges, it is undisputed that Detective Coffaro's frisk and search of § 87(2)(b) were improper because Detective Coffaro failed to inform § 87(2)(b) that if he did not consent, the detective could not search him. In addition, it is undisputed that Detective Coffaro failed to meet his obligation to offer § 87(2)(b) a business card. As Detective Coffaro provided no additional justification for seeking consent and subsequently frisking and searching § 87(2)(b) and he did not satisfy the requirements of Administrative Code 14-174 by offering § 87(2)(b) a business card at the conclusion of the incident, there are no mitigating or aggravating factors to be considered. As such, the presumptive penalty is Three (3) days for each violation. CCRB believes the issuance of a Schedule "A" Command Discipline and forfeiture of 2 vacation days to cover all the charges concurrently to be an insufficient penalty for the substantiated misconduct.

Based upon the foregoing, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against Detective Coffaro in this matter.

Respectfully submitted,

Claudia Avin

p.p., Claudia Avin, Deputy Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

November 11, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202304482 (Incident Date: May 11, 2023) regarding Detective Matthew Coffaro, Tax No. 969593 (DADS No. 2024-31842)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated November 8, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Detective Matthew Coffaro, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Detective Coffaro for the reasons expressed in my November 7, 2024 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs the issuance of a Schedule "A" Command Discipline with the forfeiture of two (2) vacation days for the allegations regarding the improper frisk, improper search, and failure to provide a business card. Furthermore, no disciplinary action will be imposed against Detective Coffaro for the allegation of the improper questioning of an individual.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office